

25PSCV01916 25PSCV01916

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Case Number: 25PSCV01916 Hearing Date: July 30, 2026 Dept: H

Leyou Logistics,

Inc. v. Meter Logistics, Inc., et al.,

Case No. 25PSCV01916

ORDER ON

DEFAULT JUDGMENT APPLICATION

Plaintiff Leyou Logistics, Inc.'s Application

for Default Judgment is DENIED without prejudice.

Background

Plaintiff

Leyou

Logistics, Inc. ("Leyou")

alleges as follows:

On April 3, 2024, Leyou and Meter

Logistics, Inc. ("Meter") entered into a license for occupancy agreement

("Agreement") for Leyou to occupy the premises located at 15736 Valley Blvd., City of Industry, CA 91744, Area W-1 ("Property"); at that time, Jon Tran aka John Van ("Tran") represented to Leyou that he had the standing and authority to lease the Property to it. On July 8, 2024, Leyou gave Meter a cashier's check for \$141,902.60, which sum included a \$139,408.80 security deposit. Leyou thereafter made all payments to Meter. On April 24, 2025, in anticipation of Leyou vacating the premises, the parties performed a walkthrough of the Property. Although Leyou and its counsel noted nothing more than ordinary wear and tear on the Property, Tran, on behalf of Meter, exaggerated and misrepresented the damages and informed Leyou that Meter would retain the entire security deposit. From that time to the present Meter has refused to return the security deposit and accordingly, Leyou has not vacated the premises. On May 8, 2025, Leyou learned that Majestic Realty is the actual owner of the Property and that Meter had no standing or authority to enter into the Agreement with Leyou. Majestic Realty has obtained a writ of possession order. On May 23, 2025, Leyou filed a complaint, asserting several causes of action against Meter, Tran and Does 1-10, including, among others, causes of action for breach of contract, conversion, and intentional misrepresentation.

On

January 30, 2026, Tran's default was entered.

On

February 24, 2026, Meter's default was entered.

An

Order to Show Cause Re: Default Judgment is set for July 30, 2026.

Discussion

Plaintiff's

Application for Default Judgment is denied without prejudice. The

following defects are noted:

1.

Plaintiff has failed to provide the

Court with a "brief summary of the case identifying the parties and the nature

of plaintiff's claim," as per California Rules of Court rule 3.1800(a)(1).

2.

Plaintiff's Chief Executive Officer,

Hui Zhang ("Zhang") appears to seek treble damages in Paragraphs 2 and 13 of

his declaration; however, it does not appear, from the accompanying Judicial

Council Form CIV-100 Request for Court Judgment, that treble damages are sought

therein. The Court requests clarification in this regard.

3.

Plaintiff seeks \$4,467.50 in

attorney's fees pursuant to the "tort of another" doctrine and Penal Code

section 469. Zhang represents, in part, that "because of the torts, and more

specifically conversion and fraud, by Defendants, all and each of them, Leyou

has been required to file and prosecute this lawsuit against the other

defendants, all and each of them." (Zhang Decl., ¶ 13.) It is unclear to the

Court what "other defendants" there are in this lawsuit, particularly as

Plaintiff has, concurrently with this instant default prove-up application,

dismissed Does 1-10. It is also unclear to the Court how theft occurred here,

inasmuch as it appears Plaintiff enjoyed possession of the Property during the

stated lease period. The Court requests that Plaintiff brief the "tort of

another" doctrine, as well as Penal Code section 496, and explain why it

believes it is entitled to attorney's fees on the foregoing grounds.

4.

Plaintiff has not provided a

calculation of its attorney's fees and is requested to do so.

5.

Zhang represents that the security

deposit was \$139,408.80. (Id., ¶ 5, Exh. 2). The "License for Occupancy

Agreement Terms" ("Agreement"), however, reflects that there was an "initial

security deposit” of \$59,656.00, with no other specific monetary amounts noted

therein as pertaining to any additional security deposit payment. (Id.,

¶ 3, Exh. 1). The Court requests that Plaintiff explain this discrepancy.

6.

Zhang makes repeated references to

“Leyou,” which is represented to be a corporation, rather than referring to

particular individuals acting on behalf of Leyou. (Id., ¶ 2). For

instance, Zhang represents that “Tran represented to Leyou that Tran had the

standing. . .,” that Leyou “gave to Meter a cashier’s check,” that on April 24,

2025, “Leyou and its counsel noted nothing more than ordinary wear and wear”

during the April 24, 2025 walkthrough of the Property, that “Leyou learned that

Majestic Realty is the actual owner of the Property,” etc. (Id., ¶¶

4-7). This is improper. The Court requests that Zhang clarify whether or not

Tran made representations regarding the Agreement to him or to someone else at

Leyou, whether he (or someone else at Leyou) gave the cashier’s check to Meter,

whether he (or someone else at Leyou) was present during the April 24, 2025

walkthrough, etc. Additionally, Zhang has failed to identify Leyou’s counsel

and Plaintiff has failed to provide a declaration from this individual

corroborating the events of April 24, 2025. The Court also queries how it is

able to determine that “nothing more than ordinary wear and tear” occurred at

the Property absent pictures or some sort of other documentary evidence of the Property taken at the inception of the Agreement and/or on April 24, 2025.

7.

The cashier's check (Exhibit 2)

reflects that it was purchased by "Le You Technology Inc." Plaintiff is "Leyou Logistics, Inc." Plaintiff is requested to explain its relationship to "Le You Technology Inc."

8.

Leyou, in its complaint, alleges

that "[f]rom that time [i.e., April 24, 2025] to the present Meter has refused to return the security deposit and accordingly, Leyou has not vacated the premises." (Complaint, ¶¶ 14-16). Zhang, though, represents that Majestic Realty obtained a writ of possession order. (Zhang Decl., ¶ 9). It is unclear to the Court, then, whether or not Leyou is still in possession of the Property. The Court requests that Plaintiff advise whether or not it has vacated the Property and, if it has, when it vacated same.

Accordingly,

the application is denied without prejudice, and Plaintiff is directed to submit a revised and complete default judgment application that addresses the aforementioned issues. Any subsequently submitted default prove-up

application must be full and complete, in and of itself. The Court will not review

piecemeal submissions.